

JUSTIFICATION FOR OTHER THAN FULL & OPEN COMPETITION

AUTHORITY: FAR 6.302, 41 U.S.C. 253(c)

Requirement Title / Name: Flathead Indian Irrigation Project (FIIP) Water Flumes**Purchase Request Number:** 44015150**Originating Office (Customer):** Eric Bruguier, FIIP**Division / Unit / Branch:** Flathead Indian Irrigation Project (FIIP)**1. This is a justification for other than full and open competition.**

Agency: Indian Affairs
IA Acquisition Office: A12 Northwest Region

2. Nature and/or description of the action being approved:

Requirement: Modification to existing order
Pricing: Firm-Fixed Price
Proposed Contractor/Vendor:
Name: Metal Works of Montana, Inc.
Street Address: 3635 W Broadway ST
City, State, Zip: Missoula, MT 59808
Phone: 406-728-5070

3. A description of the supplies or services required to meet the agency's needs (including the estimated value):

The Flathead Indian Irrigation Project (FIIP) has a requirement for metal water flumes to be fabricated for a water measurement project. This requirement was originally ordered as two separate micro purchase requirements for projects on separate canals from the same vendor one for \$9,080 and the other for \$7,810. FIIP personnel are not able to pay for this with their purchase cards as there is a \$5,000 limit imposed by DOI currently.

IGE: \$ [REDACTED]**4. An Identification of the statutory authority permitting other than full and open competition:**

- ☐ FAR 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. 41 U.S.C. 3304(a)(1)
- ☒ FAR 6.302-2 -- Unusual and Compelling Urgency. 41 U.S.C. 3304(a)(2)
- ☐ FAR 6.302-3 -- Industrial Mobilization; Engineering, Developmental, or Research Capability; or Expert Services. 41 U.S.C. 3304(a)(3)

- ☐ FAR 6.302-4 -- International Agreement. 41 U.S.C. 3304(a)(4)
- ☐ FAR 6.302-5 -- Authorized or Required by Statute. 41 U.S.C. 3304(a)(5)
- ☐ FAR 6.302-6 -- National Security. 41 U.S.C. 3304(a)(6)
- ☐ FAR 6.302-7 -- Public Interest. 41 U.S.C. 3304(a)(7)

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

The nature of the requirement has been deemed urgent and following competitive procedures would result in unacceptable delays. Cal-Poly University has a pilot project with FIIP on measuring flood irrigation these flumes need to be in place before the irrigation season starts. FIIP has no other way to measure flood irrigation currently. FIIP is dealing with the Water Compact that FIIP must track the water usage. The Water Compact with Confederate Salish and Kootenai Tribes (CKST) makes FIIP responsible for tracking the water usage on each irrigation ditch. The urgency in this situation is due to the fact that water season is arriving (April 15 to September 15). Due to the delay caused by the purchase card stoppage this is now an urgent and compelling requirement. The vendor has these water flumes on hand and is waiting for payment.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

Due to the urgent nature of this action, limited market research was conducted. Additionally, there are no further barriers to competition for water flume fabrication requirements other than the urgency in this circumstance and the remote location. Future requirements of this nature will continue to be publicized and competed. The exception at FAR 5.202(a)(2) applies.

7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This determination is based on the following:

IAW FAR 13.106-3(a)(2)(iii):

- Current price lists, catalogs, or advertisements: The company has their prices posted on their website of what it charges to anyone who requires their fabrication services.

8. A description of the market research conducted (see Part 10) and the results or a statement of the reason market research was not conducted.

Due to the urgent nature of this action, limited market research was conducted. Metal Works of Montana is one of the few companies that provides metal fabrication in the St. Ignatius, Montana Region and is registered in SAM.gov. FIIP originally received quotes from two vendors and ordered these metal flumes from Metal Works of Montana as they were the lowest priced quote. Normally FIIP uses their purchase card to pay for micro

purchases of these types of services. Since almost all purchase cards have been turned off in the Department of Interior the only other way for these services to be paid is for the Northwest Regional Contracting Office to issue a commercial contract and pay for both micro purchases with one contract since both are from the same vendor.

Additionally, there are no further barriers to competition for metal fabrication services requirements other than the urgency in this circumstance. Future requirements of this nature will continue to be publicized and competed. The exception at FAR 5.202 (a)(2) applies.

9. Any other facts supporting the use of justification of other than full and open competition, such as:

Metal Works of Montana is one of the few companies that provides these types of services in the St. Ignatius, Montana Region and is registered in SAM.gov. These metal flumes would already have been purchased if not for the purchase card stoppage and the limit of \$5,000.

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

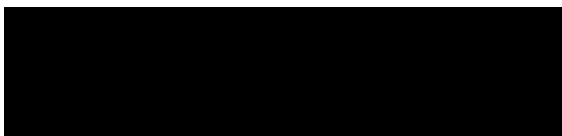
None.

11. A statement of any actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

There are no further barriers to competition for metal fabrication requirements other than the urgency in this circumstance. Future requirements of this nature will continue to be publicized and competed.

Originating Office Attestation:

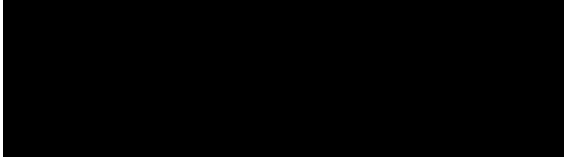
I certify that the technical data which forms a basis for this justification is complete and accurate and meets the Government's minimum needs.



Eric Bruguier
Irrigation Program Manager
Flathead Indian Irrigation Project

12. Contracting Officer certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief:

I hereby certify that this justification is accurate and complete to the best of my knowledge and belief.



Brian Roberts
Contracting Officer
Bureau of Indian Affairs